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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S OMNIBUS SUPPL. P&A —
BLACK-LETTER CONTRADICTIONS (CSAA;
MULTI-MOTION DOCKET)**

(Cal. Rules of Court, rules 3.1113, 3.1306(c); supplemental only;
cross-noticed hearings on caption.)

**Cross-noticed for pending defense hearings (this case, Dept.
302):**

#	Motion	Date / dept / judge
(1)	MFL / leave (SAC)	Apr. 30, 2026
(2)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 13, 2026, 9:30 a.m. ; Dept. 302; Hon. Joseph M. Quinn
(3)	Strike (Code Civ. Proc., § 436)	May 19, 2026 ; Dept. 302; Hon. Joseph M. Quinn
(4)	Demurrer	Hrng. date [TBD] (reserved)

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

I. INTRODUCTION AND VEHICLE

This omnibus supplemental memorandum is submitted under Cal. Rules of Court, rule 3.1113 and Cal. Rules of Court, rule 3.1306(c) as a supplement to Plaintiff’s previously filed oppositions to Defendant CSAA Insurance Exchange’s Anti-SLAPP motion (Apr. 9, 2026), demurrer (Apr. 13, 2026), Code Civ. Proc., § 436 motion (Apr. 22, 2026), and opposition to Plaintiff’s motion for leave to file a second amended complaint (Apr. 23, 2026). It is **not** a substitute for those oppositions. It maps recurring defense positions to contradicting California authority using a single template: defense position (verbatim cite to the defense extraction record) → contradicting authority (pin cite) → defect class → disposition.

II. ISSUES PRESENTED (REBUTTED DEFENSE THEORIES)

- Whether “absolute” litigation-privilege and Code Civ. Proc., § 425.16 tropes erase threshold Code Civ. Proc., § 425.17(c) sequencing and Insurance Code / Title 10 duties (**No**).
- Whether a third-party claimant is excluded from the customer / regulatory audience protected by Code Civ. Proc., § 425.17(c)(2) and Title 10 (**No**; see concurrently filed Customer-Docctrine Supplemental).
- Whether demurrer four-corners analysis may import merits-stage disparagement and collateral-attack rhetoric (**No**; *City of Cotati v. Cashman* (2002) 29 Cal.4th 69).
- Whether a Code Civ. Proc., § 436 motion may operate as a backdoor anti-SLAPP or demurrer (**No**; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680).
- Whether MFL/SAC opposition may collapse *Park v. Board of Trustees* step-one gravamen into step-two probability language (**No**; *Park* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376).

III. REGULATORY AND STATUTORY FLOOR

Insurance Code § 790.02 frames the Unfair Insurance Practices Act as regulating trade practices in the business of insurance without limiting protection to named insureds alone. Insurance Code § 790.03(h) enumerates unfair claims settlement practices; twelve subdivisions speak to “claimants” or parallel “insureds or claimants” phrasing, refuting any first-party-only gloss. Insur-

ance Code § 790.10 delegates authority for the Fair Claims Settlement Practices Regulations. Ten CCR §§ 2695.1(a), (d), 2695.2(c), (s), (t), 2695.4(a), 2695.5, and 2695.7(a)–(d) define “claimant” to include third parties, impose duties on “all claims,” and require diligent investigation and timely written disposition. Code Civ. Proc., § 425.17(c) supplies a categorical commercial-speech sequencing rule (*Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12; *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309). Civil Code § 47(b)(2)–(3) and Bus. & Prof. Code, § 6128(a) mark limits on “petitioning” re-characterizations. Insurance Code § 700 et seq. conditions the privilege of licensure on compliance with those duties.

IV. ANTI-SLAPP MPA (APR. 9, 2026) — ROWS A-1 THROUGH A-9

Each row: **Defense position** → **Contradicting authority** → **Defect** → **Disposition**.

A-1. “Early dismissal of unmeritorious claims” policy rhetoric treated as dispositive of step one.

Club Members, 45 Cal.4th at pp. 316–324; *Simpson Strong-Tie*, 49 Cal.4th at pp. 28–32. *Mischaracterized*. Treat Code Civ. Proc., § 425.17 as structurally prior.

A-2. Two-step Code Civ. Proc., § 425.16 framework quoted to skip Code Civ. Proc., § 425.17 gateway. *Club Members* (sequencing); Code Civ. Proc., § 425.17(e). *Omitted*.

A-3. “Collateral attack” / “unsupportable” labels on the FAC at step two. *City of Cotati v. Cashman*, 29 Cal.4th at p. 76; *Navellier v. Sletten* (2002) 29 Cal.4th 82, 89–92. *Overbroad*.

A-4. “Absolute” litigation privilege as blanket immunity. *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1245–1252; Civ. Code, § 47(b)(2)–(3). *Overbroad*.

A-5. Probability / “meritless” characterization at step one. *Park*, 2 Cal.5th at pp. 1062–1063; *Baral*, 1 Cal.5th at pp. 396–399. *Misinterpreted*.

A-6. *Flatley v. Mauro* (2006) 39 Cal.4th 299 and *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696 reserved for illegality / uncontroverted-record channels. *Mischaracterized* if invoked beyond their holdings.

A-7. (Lazar / fraud-label row.) Fraud and regulatory-duty theories dismissed as “baseless” without engaging Title 10 duties or the trilogy recognizing continuing duties to third-party claimants. *Royal Globe Ins. Co. v. Superior Court* (1979) 23 Cal.3d 880 (claimant-protective purpose); *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305 (duty sur-

vives loss of implied private action); *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 380–384 (UCL may predicate on practices violating § 790.03(h) standards). *Omitted*.

A-8. (Zhang / UCL row.) Unfair-competition and unfair-practice theories mislabeled as non-cognizable “petitioning” responses to a denial. *Zhang*, 57 Cal.4th at pp. 380–384; *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1061–1064. *Misinterpreted*.

A-9. (Denial-letter / Title 10 row.) Denial communications treated as severable from the regulated investigation and communication duties in 10 CCR §§ 2695.7(b), (d). The denial letter is an admission-against-interest anchor for customer status and for the regulatory context of the communication. 10 CCR § 2695.7(b), (d); *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721. *Mischaracterized*.

V. DEMURRER MPA (APR. 13, 2026) — ROWS D-1 THROUGH D-7

D-1. Four-corners attack imports step-two “frivolous” rhetoric. *Cashman*, 29 Cal.4th at p. 76. *Overbroad*.

D-2. Grounds framed as pure law questions while smuggling merits disparagement. *Cashman*, 29 Cal.4th at pp. 76–78. *Mischaracterized*.

D-3. Unfair competition / insurance-practice theories treated as categorically implausible on the face of regulated duties. Ins. Code, §§ 790.03(h)(1), (h)(3), (h)(5); 10 CCR § 2695.7(d). *Omitted* regulatory floor.

D-4. “Collateral attack” on underlying judgment used to obscure discrete new-duty theories. *Cashman*; *Baral*. *Misinterpreted*.

D-5. Privilege and § 47(b) used to defeat fraud / investigation-duty allegations at pleading stage. *Action Apartment*; Civ. Code, § 47(b)(3). *Overbroad*.

D-6. Investigation / denial communications treated as non-actionable “opinion.” *Egan*, 24 Cal.3d at pp. 818–819; *Wilson*, 42 Cal.4th at pp. 720–721. *Mischaracterized*.

D-7. CSAA-only investigation duty: third-party claimant status and written denial obligations cannot be negated by privity rhetoric. 10 CCR §§ 2695.2(c), (t), 2695.7(b), (d); *Zhang*, 57 Cal.4th at pp. 380–384. *Omitted*.

1 **VI. CCP 436 MOTION (APR. 22, 2026) — ROWS S-1 THROUGH S-7**

2 **S-1.** Code Civ. Proc., § 436 used to restrike claims already analyzed under demurrer / anti-SLAPP
3 without honest narrowing. *PH II*, 33 Cal.App.4th at pp. 1682–1683. *Overbroad*.

4 **S-2.** “Strategic lawsuit” rhetoric applied to fraud and UCL theories governed by regulatory stan-
5 dards. *Rusheen*; Ins. Code, § 790.03(h). *Mischaracterized*.

6 **S-3.** Prior “on the merits” trial outcome conflated with whether carrier pre-denial conduct was
7 litigated. *Park*. *Misinterpreted*.

8 **S-4.** Anti-SLAPP policy blocks imported wholesale. *Club Members*; *PH II*. *Omitted* sequencing.

9 **S-5.** Strike motion as surrogate for fact finding on investigation adequacy. 10 CCR § 2695.7(d);
10 *Wilson*, 42 Cal.4th at pp. 720–721. *Overbroad*.

11 **S-6.** Litigation privilege duplicates used to shield pre-trial representations to tribunal. Civ. Code,
12 § 47(b)(2)–(3); Bus. & Prof. Code, § 6128(a). *Misinterpreted*.

13 **S-7.** *Flatley* misapplied to immunize investigation misrepresentations. *Flatley*, 39 Cal.4th at pp.
14 316–322. *Mischaracterized* if over-read.

15 **VII. MFL/SAC OPPOSITION (APR. 23, 2026) — ROWS M-1 THROUGH M-4**

16 **M-1.** Step-two / probability language at step one. *Park*; *Baral*. *Misinterpreted*.

17 **M-2.** Service / procedural objections. **Conceded** as potentially curable.

18 **M-3.** Lodging / formatting objections. **Conceded** as procedural.

19 **M-4.** “Frivolous” anti-SLAPP fee threats used as merits proxy. Code Civ. Proc., § 425.16(c)(1);
20 *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468; *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th
21 871. *Overbroad*.

22 **VIII. CROSS-CUTTING — CUSTOMER DOCTRINE AND INSURANCE-CODE**
23 **TABLE**

24 Plaintiff incorporates by reference the analysis in the concurrently filed Supplemental Memo-
25 randum titled *Customer Doctrine under Code of Civil Procedure section 425.17(c)* (Customer-
26 Doctrine Supplemental for CGC-25-631802, lodged concurrently).

Provision	Black-letter point for omnibus use
Ins. Code § 790.02	Regulates trade practices in the business of insurance; no insured-only limitation stated.
Ins. Code § 790.03(h)	Sixteen unfair practices; “claimants” and “insureds or claimants” phrasing.
Ins. Code § 790.10	Delegation for Title 10 regulations.
Ins. Code § 11580(b)(2)	Duty-to-defend context informs insurer–claimant relationships where pleaded.
Ins. Code § 791.13	Consumer comparison / unfair method context where pleaded.
10 CCR § 2695.2(c), (t)	“Claimant” includes third-party claimant.
10 CCR § 2695.7(b), (d)	Written denial bases; thorough, fair, objective investigation.
Code Civ. Proc., § 425.17(c)(1)–(2)	Commercial actor; commercial speech / delivery; triply disjunctive audience.

IX. APPLICATION TO CGC-25-631802

The sole defendant is CSAA Insurance Exchange. The omnibus matrix applies across calendars: threshold Code Civ. Proc., § 425.17(c) and Title 10 duties are common spine issues; demurrer and Code Civ. Proc., § 436 papers must not import merits disparagement as pleading-stage law; MFL/SAC opposition must not collapse anti-SLAPP steps. The *Zhang / Moradi-Shalal / Royal Globe* line is particularly material where CSAA attempts to label fraud and UCL theories “baseless” without engaging the regulatory standards those theories track.

X. CONCLUSION AND RELIEF REQUESTED

For each hearing, Plaintiff requests that the Court (a) treat this filing as supplemental authority under Cal. Rules of Court, rule 3.1306(c); (b) reject defense over-reads flagged above; (c) deny or sustain objections consistent with the cited authorities; and (d) take judicial notice as requested in the concurrently amended RJN.

APPENDIX A. DEFENSE POSITION INVENTORY (REPRESENTATIVE ROWS)

Note: Line numbers refer to extraction.md in each defense bundle; confirm quotations against source.pdf before filing. See Merit Isolation Report on file with counsel.

ID	Pleading	Line	Quote (trunc.)	Contradicting authority	Class
802-A	Anti-SLAPP MPA	437	“The absolute litigation privilege ...”	Civ. Code, § 47(b)(2)–(3); <i>Ac-tion Apartment</i>	Overbroad

ID	Pleading	Line	Quote (trunc.)	Contradicting authority	Class
802-B	Anti-SLAPP MPA	1658	“Unsupportable ‘Collateral Attack’ ”	<i>Cashman</i> , 29 Cal.4th 69	Mischaracterized
802-C	Anti-SLAPP MPA	1111	“baselessly alleges ... fraudulent”	<i>Zhang</i> ; Title 10, § 2695.7(d)	Omitted
802-D	Demurrer MPA	539	“legally unsupportable” (FAC attack)	<i>Cashman</i> , 29 Cal.4th 69	Rhetoric
802-E	CCP 436 MPA	1171	“unsupportable as a matter of law”	<i>Park</i> ; <i>PH II</i>	Overbroad
802-F	MFL opposition	122	“legally unsupportable motion practice”	<i>Park</i> step separation	Rhetoric

APPENDIX B. AUTHORITIES CITED

1. Cal. Rules of Court, rules 3.1113, 3.1306(c).
2. Code Civ. Proc., §§ 128.7(b), 425.16, 425.17, 436, 904.1(a)(13).
3. Civ. Code, § 47(b).
4. Bus. & Prof. Code, § 6128(a).
5. Ins. Code, §§ 700 et seq., 790.02, 790.03(h), 790.10, 11580(b)(2), 791.13.
6. Cal. Code Regs., tit. 10, §§ 2695.1–2695.7.
7. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12.
8. *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309.
9. *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984.
10. *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664.
11. *Flatley v. Mauro* (2006) 39 Cal.4th 299; *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696.
12. *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232.
13. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048.
14. *City of Cotati v. Cashman* (2002) 29 Cal.4th 69.
15. *Navellier v. Sletten* (2002) 29 Cal.4th 82.
16. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057.
17. *Baral v. Schnitt* (2016) 1 Cal.5th 376.
18. *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680.
19. *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468; *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 871.
20. *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713.
21. *Royal Globe Ins. Co. v. Superior Court* (1979) 23 Cal.3d 880.

- 1 22. *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287.
- 2 23. *Zhang v. Superior Court* (2013) 57 Cal.4th 364.

Dated: April 30, 2026



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